IN THE SUPREME COURT OF INDIA AT NEW DELHI
(Civil Appellate Jurisdiction)

S.L.P. (Civil) Nos.26537 and 26538/2009.

In the matter of :

Sri Ganesh Raju & another. Petitioners

And:

Smt. Narasamma (since deceased)
through her LRs & others. Respondents

REJOINDER-STATEMENT FILED BY THE PETITIONERS WITH REFERENCE TO THE "COUNTER-AFFIDAVIT ON BEHALF OF THE RESPONDENTS 1 AND 2 DATED 27.1.2010".

The petitioners who have quite carefully gone through the contents of the afore-mentioned "counter-affidavit on behalf of the respondents 1 and 2" most respectfully crave the kind leave of this Hon'ble Court to file this Rejoinder thereto as follows.

1. In order that brevity and the consistency are kept up and repetition avoided, the petitioners most respectfully pray that this Hon'ble Court be pleased to read and treat the contents of the memorandum of Special Leave Petition as a part and parcel of this Rejoinder-Statement. To the extent, the counter-affidavit under reference is opposed to the contents of the said memorandum of Special Leave Petition, the petitioners refute the contents of the said counter-affidavit and reiterate what has already been stated in the memorandum of Special Leave Petition.

2. It is respectfully submitted that Sri Konaraju did not face any financial-crisis at the relevant point of time. He willingly sold the property in question to late Venkataraju. Sri S.Narasaraju bought the said property at a later point of time, investing his own financial-means and resources for the said purchase.

3. The then City Improvement Trust Board agreed to re-convey the sites in question in favour of late S.Narasaraju in response to an application for re-conveyance that he had filed with the said Board. The fee and charges for such a re-conveyance were also duly paid by late S.Narasaraju. While re-conveying the sites in question, the City Improvement Trust Board did not consult the respondents since they were not having any kind of right or title to, interest in or possession of the said property. They were not the rightful owners thereof either. Therefore, there was no necessity for the said Board to consult or notify the respondents, in that regard.

4. The alleged document/agreement which is attributed to the petitioners, as has been inarticulately noted in para 8 of the counter-affidavit never existed. Hence, reference to such a non-existing document which is sought to be attributed to the petitioners is a desperate-attempt of the respondents to create a non-existing right in their favour in respect of the properties in question, by fraudulent means and manipulation. Had such a document existed and the same was a genuine one, it passes the comprehensive of any-one as to why the respondents did not produce the same before the court of law for over the four decades. It is, therefore, respectfully reiterated that no such document, as has been sought to be attributed ever existed.

5. No joint-family existed at the period mentioned in the counter-affidavit eventhough all the coparceners sold the properties together.

The same would not imply that the properties in question are/were joint-family-properties as claimed in the counter-affidavit. The said properties never belonged to Sri Konaraju.

6. The fact that, behind the back of the petitioners herein, and without the due procedure being followed, the respondents sought to bring on record "certain additional documents" in the appeal from which the above-mentioned Special Leave Petitions have arisen and that the said appeal has been disposed of behind the back of the petitioners herein and on the basis of a discrete and clandestine-arrangement amongst the respondents themselves would more than sufficient to reject the uncontention of the respondents that the judgment questioned in the Special Leave Petitions is sustainable.

7. The statements made in para 19 of the counter-affidavit seek to cut the corners too fine, without, however, the answering-respondents dwelling on, dealing with or disputing the factual-statements which are made on oath in the memorandum of Special Leave Petitions.

8. The fact that the judgment questioned in the Special Leave Petitions has been passed without the petitioners being consenting parties thereto and the said judgment has not been rendered on the merits of the case but on the basis of a discrete-arrangement that the respondents made amongst themselves would be more than sufficient to hold that there is no substance in the contention of the respondents that the Special Leave Petitions lack merit in as much as the petitioners who had succeeded in the suit have been badly injured and affected by the impugned judgment which is in reversal of the one that had been passed in their favour by the trial court, and the impugned judgment is not rendered on the merits of the case but on the basis of a discrete-arrangement that the respondents had made amongst themselves ***inter-se*** for knocking off all the properites in question to the total detriment and exclusion of the petitioners.

Apart from the illegality in such an arrangement, and the Hon'ble High Court passing the impugned judgment on the basis of such an arrangement to which the petitioners were not consenting parties, even the unfair-conduct of, and collusion amongst the respondents inter-se would richly commend the Special Leave Petitions being allowed and the impugned judgment being set-aside as infected by such a sharp-practice that the respondents have resorted to, thereby throwing into winds even the basic principles of fair-play and natural justice. There is thus no substance in the contention of the answering-respondents that the petitioners cannot or could not have any objection to such an order being passed by the Hon'ble High Court in the Regular First Appeal.

9. Solely based on the impugned judgment which has been secured by the respondents behind the back of the petitioners that they have moved the Bangalore Development Authority with an application for the properties in question being conceded in their favour. The Bangalore Development Authority has been so proceeding only on the basis of the impugned judgment and not on the basis of the actual entitlement of the parties concerned. Even the writ petition that Sri. Chandra Raju and others had filed against the Bangalore Development Authority having been dismissed, and the Bangalore Development Authority having had no material or basis for upholding the tall-claim that the answering-respondents have been asserting, the attempt that they have been making before the Bangalore Development Authority, posterior to the impugned judgment, and solely based thereon is demonstrably dubious.

10. The Hon'ble High Court did not consider the "additional documents" placed before it in the appeal but has based the impugned judgment solely on the internal-arrangement or compromise that the respondents had made amongst themselves – the petitioners being not consenting parties thereto. Even assuming without conceding that there is any truth or substance in the tall-

claim made by the respondents (plaintiffs in the original suit) that the properties in question were joint-family-properties and that they are or were entitled to a share in the properites in question, the petitioners cannot be justifiably denied their entitlement to and share in the said properties as the impugned judgment seeks to do.

11. The statement contained in para 20 of the counter-affidavit under reference reading :-

> "that the present Special Leave Petition has been filed primarily on the ground that the afore-said directions of the High Court have been passed without any consent from the petitioners and also without the High Court considering the merits of the appeal."

12. Without rightly disputing the said specific case that the petitioners have pleaded that the said judgment has been passed witout their consent thereto and also without the merits of the appeal being gone into would justify and commend the said judgment being set-aside and the Special Leave Petitions being allowed as has been prayed for, with exemplary costs being awarded to the petitioners herein, in the interest of justice and equity.

It is most respectfully submitted and prayed accordingly.

Bangalore ADVOCATE FOR THE PETITIONERS
Date: /4/2010

IN THE SUPREME COURT OF INDIA AT NEW DELHI
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In the matter of :

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And:

Smt. Narasamma (since deceased)
through her LRs & others. Respondents

REJOINDER-STATEMENT FILED BY THE PETITIONERS WITH REFERENCE TO "THE REPLY TO APPLICATION FOR CONDONATION OF DELAY ON BEHALF OF THE RESPONDENT NO.1 AND OTHERS".

The petitioners above-named respectfully submit as follows:-

1. The petitioners behind whose back and without whose consent, the answering-respondents have deceitfully obtained the judgment impugned in the Special Leave Petitions have, uncharitably sought to attribute motives to the petitioners that they have deliberately delayed in approaching this Hon'ble Court with the above Special Leave Petitions.

2. In view of the well-settled-position in law, as has been reiterated in the case of State of Bihar and others v/s. Kameshwara Prasad Singh and another, reported in 2000(9) SCC at page 94, which celebrated ruling follows, in turn, 20 rulings earlier rendered as to the liberal approach that the courts of law have to follow in the matter of condonation of delay in approaching the court of law and that no litigant would gain but would only subject himself or herself to intentionally delaying his or her approaching the court of law, it is

most respectfully submitted that the opposition to the application for condoning the delay in filing the Special Leave Petitions, particularly when the fact that the petitioners had, before approaching this Hon'ble Court with the afore-mentioned Special Leave Ptitions filed a Review Petition containing a proper-explanation for delay in filing the same, is not well intended by the answering-respondents.

3. The various statements made in the said Reply Statement are thus untenable.

4. The rulings on which the answering-respondents have sought to place reliance for opposing the application for condonation of delay, as have been mentioned in para 11 of their counter-affidavit have no bearing what-so-ever on the questions involved in the Special Leave Petitions.

5. As is too well-settled by the several pronouncements of this Hon'ble Court including the one reported in 2007 (7) SUPREME 374 AND air 2004 S.C. page 4269 (Punjab National Bank Vs. R.L. Vaid) even a single-difference in the facts of a given case from that of another decided case would not make the said earlier decision, a precedent for being applied to a later case. There is, therefore, no substance in the contention of the answering-respondents that the rulings referred to by them in para 11 of their counter-affidavit have any bearing on the case on hand.

6. True, cogent and convincing explanatin for the unavoidable delay that has occurred in the matter having been duly offered by the petitioners, in their application for condonation of delay, the contentions to the contrary, contained in the counter-affidavit of the answering-respondents are refuted as untenable.

7. As is the well-settled-position in law, good-causes cannot be turned down on technicalities such as limitatopm or delay because

the object of providing legal-remedy is to repair the damage caused by a reason of legal-injury.

8. There are neither malafides on the part of the petitioners nor have they ever indulged in any dilatory strategy. Further, dismisisng any good-cause on technical-grounds of limit would not, in any way, advance the interest of justice but would result in failure of justice to the party seeking condonation of dealy in approaching the court of law. In this context, the petitioners quite respectfully invite the kind attention of this Hon'ble Court to the findings, observations and the ratio contained in paragraphs 11 to 14 of the afore-mentioned ruling reported in 2000(9) SCC page 94 at pages 103 to 105 thereof in support of their contentions.

9. The opposition to the condonation of delay that the petitioners have prayed for is indicative of the total desperation of the respondents who, even in their main counter-affidavit filed in opposition to the Special Leave Petitions have not rightly disputed or denied the incontravertible fact that the impugned judgment has been passed without their consent thereto and also without the Hon'ble High Court considering the merits of the appeal from which the above-mentioned Special Leave Petitions have arisen.

10. Keeping in view the severe-injury that has been inflicted on the petitioners by the despicable-conduct of the contesting respondents, as has been graphically demonstrated in the memorandum of Special Leave Petitions, the cause of justice would be advanced by dealing with the merits of the Special Leave Petition and allowing the said petitions on the merits thereof, while accepting the desperate technical contention of the contesting respondents on the aspect of delay resulting in a perpetuation of the legal-injury that has been inflicted on the petitioners.

PRAYER :

11. Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to :-

reject the contentions of the respondents that they have raised against the application for condonation of delay in filing the Special Leave Petition, and allow the said petitions, as has been prayed for, thereby rendering substantial justice to the petitiners, in the interest of justice and equity.

Bangalore
Date: /4/2010

ADVOCATE FOR THE PETITIONERS

IN THE SUPREME COURT OF INDIA AT NEW DELHI
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THE PETITIONERS' REJOINDER TO THE APPLICATION OF THE RESPONDENTS RE: VACATING THE INTERIM ORDER PASSED IN THE SPECIAL LEAVE PETITIONS.

1. The petitioners respectfully submit that the respondents who had over-reached this Hon'ble Court and proceeded to put up a construction on the sites in question cannot justifiably be allowed to bring about land-slide-changes during the pendency of the Special Leave Petitions, by their own overt acts which they surely perpetuate and accomplish if the interim order that has alrady been passed in the Special Leave Petitins is in any way altered or vacated. Further, the petitioners have made-out a prima facie case I n the Special Leave Petitions that the impugned order is vitiated and is, therefore, liable to be set-aside for the weighty-reasons which have been adroitly stated in the memorandum of Special Leave Petition. Therefore, the petitioners respectfully state that in their humble submission it would not be necessary for them to dwell on or deal with the various statements that the contesting respondents have made in their application for vacating the interim order.

2. If the interim order that has been in operation is in any way altered or vacated, land-slide-changes will surely be brought about by the respondents who not only have political-clout and the support of the bureaucrats as also muscle-power and money-power to accomplish their clandestine-intention of grabbing the properties in question to the total deprivation of the petitioners herein who are legitimately entitled to the said property, would deploy the same.

3. It is most respectfully submitted accordingly.

Bangalore ADVOCATE FOR THE PETITIONERS
Date: /4/2010

IN THE SUPREME COURT OF INDIA AT NEW DELHI
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S.L.P. (Civil) Nos.26537 and 26538/2009.

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APPLICATION UNDER SECTION 15 (1) OF THE CONTEMPT OF COURT ACT, 1971 R/W ARTICLE 129 OF THE CONSTITUTION OF INDIA

1. The present Special Leave Petition has been directed against the order dated 12.3.2009 of a Division Bench of the Hon'ble High court of Karnataka, which has unfortunately declined to entertain and allow the Review petition No.369/2008 that the petitioners herein had filed in the said court praying for recalling and reviewing the order/judgment dated 15.7.2008 rendered in the said Regular First Appeal.

2. The petitioners herein were the respondents in the aforesaid Regular First Appeal which had arisen from a original suit in O.S. No.3684/1992 that had been instituted by the respondents herein for partition and separate possession

of the properties claimed by them, in the said suit. The said suit having been dismissed by the trial court the respondents herein had appealed therefrom to the Hon'ble High Court of Karnataka, in R.F.A. No.1476/2005 mentioned above. Sri. Ganesh Raju s/o. late S. Narasa Raju (since deceased) was the third respondent in the said appeal whereas, Sri. S. Krishnamurhty, s/o. late S. Narasaraju was the 6th respondent in the said appeal. The right and interest of the said respondnets has been severely affected by the judgment passed in the said appeal. The respondents camouflaged and colluded and in sharing an distributing all the suit schedule properties amongst themselves, behind the back of the petitioners herein. The petitioners herein were neither heard in the matter nor had they ever consented for the appeal being disposed of in the manner contained in the said laconic "judgment" rendered in the appeal. Further, it would be wholly inconceivable that the petitioners herein who had althrough been contesting the said appeal and had even emerged successful in the original suit would have ever consented for totally excluding themselves from the properties in question, and the said properties being snatched away by the respondents who have no claim whatsoever thereto, or for the respondents alone sharing and enjoying all the schedule properties to the total exclusion of the petitioners herein. Therefore, on coming to know of the deceit and fraud that has been so played on the petitioners in getting the appeal settled in the manner contained in the judgment rendered in the appeal the petitioners approached the Hon'ble High Court with a Review Petition under Order 47 Rule 1 of the Code of Civil Procedure, 1908, contending

interalia that the judgment rendered in the original suit which was the subject matter of the Regular First Appeal could not have been reversed or set aside in the manner contained in the said judgment passed in the appeal when the petitioners had not even been heard in the matter. They genuinely felt that it would be apposite and necessary for them to first bring the glaring error and illegality in the judgment, to the notice of the Hon'ble High Court itself, so that, the said error apparent on the face of the record in the said judgment could be collected by it in the interest of justice and equity, without the petitioners being driven to the necessity of approaching this Hon'ble Court, hurriedly. Eventhough, in the facts and circumstances of the case, as also in law, and equity it was absolutely necessary that the said Review Petition had to be entertained and allowed, even in the absence of a contest thereto, and despite notice thereof to the respondents herein, the petition was dismissed by the Hon'ble High Court. Not unnaturally aggrieved thereby and the injustice that has flown to the petitioner therefrom requiring to be redressed and remedied, they have approached this Hon'ble Court with the aforementioned Special Leave Petition. Notice thereof having been ordered by this Hon'ble Court, all the respondents in the Special Leave Petition have been duly served with the court notice issued in the said petition. The interim order that has been passed by this Hon'ble Court in the said petition has been in operation althrough.

3. The respondents who had been seeking to over reach this Hon'ble Court, hurrying through the matters and proceeding with construction of a huge superstructure on one

of the suit schedule properties, bearing No. 290-A, 34th Cross, 9th Main, 4th Block, Jayanagar, Bangalore – 560 011had stopped further construction in view of the interim order of this Hon'ble Court the notice and knowledge of which all the respondents do have. As already stated some of them have filed their counter-affidavit in the petition, the petitioners having even filed their Rejoinder thereto.

4. Eventhough it is absolutely necessary that every order, direction and the like of every court of law has to be unfailingly respected and obeyed by everyone concerned, and any disrespect, disregard or breach thereof would constitute a serious inroad into the judicial process of the court concerned, thereby rendering the persons who commit breach thereof liable to be punished for contempt of the court concerned, it is poignant that the 1st respondent herein has been proceeding with the construction on the aforestated suit-schedule property by instigating and setting up her son by name Raghu S., S/o. Lakshmamma who has been residing with the 1st respondent. The said Raghu poured on the husband of Smt. Lakshmi Raju on the cell phone of her husband Sri. Chandrashekar Raju threatening the said Chandrashekar Raju that pursuing the Special Leave Petition would lead to the lives of the petitioners herein (the legal representative of the original first petitioner in particular) being taken away, and that for saving themselves, they have to withdraw the Special Leave Petition forthwith. When Sri. Chandrashekar Raju communicated the same to Smt. Lakshmi the daughter of the deceased Ganesh Raju she called up the said Raghu and advised him to refrain from holding any such threats

particularly because the matter is subjudice before this Hon'ble Court admonishing him that any such threat would constitute a serious inroad into the subject matter of the above mentioned Special Leave Petition. The crude response thereto that the said Sri. S. Raghu showed was still more offensive, in that he not only held out further threats of doing away with the lives of the petitioners but even further threatened that he would destroy Smt. Lakshmi and all herfamily members if they did not withdraw the Special Leave Petition. Furthermore, the said Raghu came to the spot on 1.2.2001 in perpetuation of the threat held out by him on 31.1.2011 and had even engaged rowdy-elements to cause physical harm to Smt. Lakshmi and others if the work of construction which has been ordered by this Hon'ble Court by its interim order to be stopped was obstructed to by any of them. When Smt. Lakshmi requested Raghu to forbear from proceeding with the construction, he again poured on her an avalanche of indignant accusations, using slangs and abusive language, even commenting on the merits of the Special Leave Petition.

5. In the situation mentioned above, the petitioners engaged the services of M/s. AMS Enterprises, Digital, Jayanagar, Bangalore, for photographing the work of construction that Sri. Raghu has indulged in. The photographs so taken have been developed by M/s. G.K. Vale a highly reputed photography Company, of Bangalore. A copy of the Cash Receipt evidencing the payment of photography, charges and Printing-charges is filed herewith as **Annexure-P1**. **Annexure-P2 to 5** collectively being the 4 photographs

which show Sri. Raghu having engaged himself in the resumption of work of construction on the property bearing No.290 A, 34th Cross Road, 9th Main Road, 4th Block, Jayanagar, Bangalore- 560 011 respecting which the interim order of status-quo passed by this Hon'ble Court has been in continuous operation.

6. Since the threat to life that Sri. Raghu has posed has caused severe anguish to Smt. Lakshmi and her family members, she has lodged a complaint with the Sub-Inspector, Jayanagar Police Station, Bangalore on 1.2.2011. A true copy thereof is filed herewith as **Annexure-P6.**

7. Since the resumption and proceeding with the construction on the aforementioned property, even in the wake of the continued operation of the interim order of status-quo passed by this Hon'ble Court is a serious breachof and inroad into the subject-matter of the Special Leave Petition, and is thus a serious contempt of this Hon'ble Court which contumacious act has been deliberately resorted to by the 1st respondent who has set up her son Sri. Raghu to perpetuate the contempt, it has become inevitable and unavoidable for the petitioners to bring the same to the kind notice of this Hon'ble Court, for appropriate action against the respondents and Sri. Raghu being taken for the deliberate acts of contempt that they have indulged in. Hence, this application.

8. The act of disrespect, disregard and the breach of the interim order of the status-quo passed by this Hon'ble Court is

quite deliberate and is intended by the 1st respondent and her son S. Raghu as an affront to the interim order passed by this Hon'ble Court. They have depicted that they have no respect for the orders of this Hon'ble Court.

9. It is, therefore just and necessary, for upholding the majesty of law and the efficacy of the judicial interdict that this Hon'ble Court has been pleased to pass in the aforementioned Special Leave Petition that appropriate action is taken against them suo-motto, lest, the high dignity of this highest judicial institution of the country would be affected, and the 1st respondent and her son will in such a situation perpetuate the gross contempt that they have indulged in. There is considerate amount of deliberateness in the breach that they have contumaciously indulged in.

PRAYERS:

10. Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to:

> ***initiate*** and take suo-motto appropriate action against the 1st respondent and her son Sri. Raghu s., r/o. Door No. 61, AGS Layout, Near BEL Layout, Bangalore – 560 054, for the deliberate act of contempt of this Hon'ble Court that they have been indulged in and punish them for the same, in the interest of justice and equity.

New Delhi
Date: 7.2.2011

Advocate for the Petitioners

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AFFIDAVIT

I Smt. Lakshmi Raju, aged 31 years, w/o Sri. Chandrashekar Raju P/., and D/o. late S. Ganesharaju, r/o. Door No.278, 9th Main Road, 34th Cross, 4th Block, Jayanagar, Bangalore-560 011, do hereby solemnly affirm and state on oath as follows:-

1. I am one of the legal representatives of the deceased S. Ganesharaju who was the 1st petitioner in the aforementioned Special leave Petition. I am fully conversant with the facts of the case. I am authorised by the other legal representatives of the deceased S. Ganesharaju to swear to this affidavit on their behalf as well, which I hereby do.

2. I state that I have quite carefully read the contents of paragraphs 1 to 10 of the accompanying application which are all true to the best of my personal knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. The documents filed with the application and marked as Annexures-P1 to P6 are all true copies of their originals.

Verified at Bangalore on 7th day of February 2011

DEPONENT

No.of corrections

Identified by me

Advocate